

M/s Shree Bihari Forgings Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 September 2016 · Writ - C No. 35016 of 2013 · **Writ petition dismissed as infructuous.**

HEADNOTE

A challenge to additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with pending similar writs and the demand stayed on the strength of an existing interim order; the petition was later dismissed as infructuous on the petitioner's statement, without deciding the Code question.

FACTUAL SUMMARY

M/s Shree Bihari Forgings Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. On 2 July 2013 the High Court connected the writ with Writ Petition No. 30582 of 2009 and like matters, allowed three weeks for a counter affidavit, and, following the interim order already granted in that connected petition, restrained the respondents from demanding additional security until further orders. In 2016 the petitioner's counsel stated the writ had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement, without any decision on whether such security could be demanded. ¶ 2

PRINCIPLE TAGS

additional-security

A challenge to additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with pending similar writs and the demand stayed on the strength of an existing interim order; the petition was later dismissed as infructuous on the petitioner's statement, without deciding the Code question. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY CAN BE DEMANDED UNDER PARAGRAPH 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The petition was connected with pending challenges on the same issue and later dismissed as infructuous without a merits decision. ¶ 1-2